26PR00358 Matter of the Stuart G Winslow Trust

County: santa-barbara

Division: Trust

Department: 2 SM-Cook

Hearing date: 2026-09-01

Motion: Petition to Determine Claim to Property

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Tentative Ruling: Matter of the Stuart G Winslow Trust

Case Number

26PR00358

Case Type

Trust

Hearing Date / Time

Tue, 09/01/2026 - 09:00

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Supplement re: date of acquisition of property at issue. Petitioner argues that the subject properties should be found to be held in trust, because the preamble of the trust references the trust holdings as those outlined on the attached schedule. However, the attached schedule only references the two Montecito Bank and Trust accounts, and not the Schwabb account or the ownership interests in the two listed corporations.

Petitioner relies upon a general assignment clause in the attached schedule that claims that all property owned by the trustee is placed into the trust, even after-acquired property. This is not the state of the law of California.

There is no case in California law that stands for the proposition that a general assignment clause can operate as a catch-all to after-acquired property, thus no interest in property acquired after execution of a trust can be confirmed by our courts as trust property. In fact, there is substantial authority to the contrary.

First, Restatement (3rd) of Trusts (2003) §41 states: “An expectation or hope of receiving property in the future, or an interest that has not come into existence or has ceased to exist, cannot be held in trust.” Comment b to that section is persuasive:

Nonexistent interests. An interest may not be in existence because the thing that would be the subject matter of the interest is not itself in existence or, although the thing exists, no one has an interest in it. In these cases, no one has an interest in anything of which there could be a declaration of trust or a transfer to another in trust. A person can make a promise to create a trust of an interest in such a thing should it thereafter be acquired, but such an agreement is not binding unless the requirements of the law of contracts are satisfied.

Thus, according to the Restatement, no property acquired after the settlor executed the trust may be considered trust property, regardless of whether the settlor intended it to be, unless the settlor amends the trust to include the after-acquired property, or the settlor takes title to the after-acquired property as trustee of the subject trust. Neither happened in this case.

Second, the Restatement’s position was confirmed by our District of the Court of Appeal in Kucker v. Kucker:

The General Assignment was ineffective to transfer the Trustor's real property to the Trust. To satisfy the statute of frauds, the General Assignment was required to describe the real property so that it could be identified. (Sterling v. Taylor (2007) 40 Cal.4th 757, 772, 55 Cal.Rptr.3d 116, 152 P.3d 420; King v. Stanley (1948) 32 Cal.2d 584, 589, 197 P.2d 321, disapproved on other grounds in Patel v. Liebermensch (2008) 45 Cal.4th 344, 351, fn. 4, 86 Cal.Rptr.3d 366, 197 P.3d 177; Osswald v. Anderson (1996) 49 Cal.App.4th 812, 818, 57 Cal.Rptr.2d 23.) But the issue here concerns the Trustor's transfer of shares of stock, not real property. The statute of frauds does not apply to such a transfer. (Civ.Code, § 1624.)

(Kucker v. Kucker (2011) 192 Cal.App.4th 90, 95.)

Third, the cases of Ukkestad v. RBS Asset Finance, Inc. (2015) 235 Cal.App.4th 156, and Carne v. Worthington (2016) 246 Cal.App.4th 548, often cited for the proposition that after-acquired real property can be confirmed a trust asset, do not, in fact, stand for that proposition. The two parcels of real property in Ukkestad were titled in the name of the decedent in that case, as an individual, on the date of death (Id. at p. 160), and were infamously nowhere described in that opinion as having been acquired after the settlor (named Mabee) executed the trust. Further, the language comprising the general assignment clause in the trust did not include terms that could even remotely be considered to include prospective/after-acquired property:

“The Grantor [(i.e., Mabee)], by the execution of this instrument, hereby assigns, grants and conveys to the Trustees of this instrument all of the Grantor's right, title and interest in and to all of his real and personal property, including all Tangible Personal Property, stocks, bonds, cash, mutual funds and promissory notes, all amounts on deposit from time to time at any bank, savings and loan association or investment institution, real property, leases on real property, interests in business entities and all other property owned by the Grantor, wherever situated.... The Grantor intends this assignment to be effective as of the date of this instrument even though other documents may be necessary to perfect title to such property in the name of the Trustees.”

(Id. at p. 159 [emphasis added].)

The facts were no different in Carne v. Worthington (2016) 246 Cal.App.4th 548. In that case, the only distinction is that an after-executed trust was at issue, but the real property was concretely owned by the settlor at the time of execution of both trusts under consideration. (Id. at p. 552 ["In 2009, Liebler executed the 2009 Trust. As noted in part I., ante, among other provisions, the 2009 Trust expressly transfers the property listed in Schedule A to the trust, and lists the Via Regla Property in Schedule A."].)

No other published case has addressed this issue, thus no published case supports the proposition that after-acquired property (even that titled in the name of settlor as an individual) can be affirmed a trust asset. In fact, there is no authority to even justify title taken in the name of the trust after execution of the trust, if language in the trust does not provide for additional property to be added in the future.

Thus, when title to property was not ever taken in the name of the trust, after the trust was executed, it cannot be considered trust res.

Some have argued that if trust funds were used to purchase property that was then titled outside of the trust, that property is trust property because the trust funds can be traced to the trust. This is a tracing argument, similar to common law constructive trust relief often prayed for in tort cases. There is no support for this poor legal argument, because:

The Statute of Frauds requires description of real property for the writing to satisfy the requirement.

Property purchased with trust funds, then recorded in a title holder that is not the trust, triggers the Evidence Code section 662 presumption of recorded title/intent, and is evidence itself that the settlor lacked the intent to place the property in the trust.

No general assignment clause in a trust, even one that has language unambiguously expressing an intent to place all after-acquired property into said trust, is 1) sufficient to satisfy the contemporaneous intent requirement encompassed within the statute of frauds; and 2) is sufficient to overcome any evidence of contrary intent formed after the trust was executed. (Restatement (Third) of Trusts (2003) § 41.)

The judicial and public policy behind the tracing doctrine is to fight against fraud, not to micromanage titleship.

THEREFORE, a supplement is needed to address when the settlor of this trust took title to the three properties not listed in the schedule of property attached to this trust. The supplement should include discussion addressing the seemingly contrary intention of the settlor of this trust that to add after-acquired property to the trust, title had to be taken in the name of the trust, or by designating in writing that the property be added to the trust. (Pet, and exh. A, Article 2.2; dgtl. p. 10.)

Judges

Judge James F. Rigali

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